



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing ten judgments on Tuesday 23 July 2019 and 26 judgments and / or decisions on Thursday 25 July 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 23 July 2019

Širvinskas v. Lithuania (application no. 21243/17)

The applicant, Dalius Širvinskas, is a Lithuanian national who was born in 1981 and lives in Karmėlava, in the Kaunas Region (Lithuania).

The case concerns court proceedings which determined a child's temporary and then permanent place of residence in a divorce case.

In June 2010 Mr Širvinskas married I. In September 2010 their daughter P. was born. Until November 2013 they lived in Mr Širvinskas's parents' house in Karmėlava. On 9 November 2013 Mr Širvinskas called the police and told them that he and his wife were having a dispute and that she had decided to leave their home and take their daughter with her. According to Mr Širvinskas, the police ordered him to allow his wife to take their daughter with her, but the parents agreed that she would live with each of them in turn until they reached a permanent decision.

In December 2013 I. filed a petition for divorce before the District Court, asking that P. should temporarily reside with her until a final decision and a residence order had been adopted. A day later Mr Širvinskas asked the court for a residence order in his favour and for P. to temporarily reside with him until then. He submitted that from her birth until her departure with I., P. had lived in his parents' house and was used to it. He also submitted arguments as to why that house was better suited to the child's needs. However, the courts stated that those arguments would be addressed at a later stage, when making a residence order. In January 2014 the courts ruled that P.'s habitual place of residence should not be changed without good reasons and thus she should temporarily reside with her mother. An appeal by Mr Širvinskas was dismissed in April 2014.

The District Court's decision in the divorce proceedings, including a residence order, was delivered in November 2015. That court, and later an appellate court, found that the girl had already been living with her mother for two years and was used to the apartment she had been living in, and that changing her place of residence again would be harmful. They therefore made a residence order in favour of I. An appeal on points of law was rejected by the Supreme Court in December 2016.

Relying on Article 6 (right to a fair trial) of the European Convention on Human Rights and Article 14 (prohibition of discrimination) taken in conjunction with Article 8 (right to respect for private and family life), Mr Širvinskas complains about the courts' decisions concerning P.'s residence in favour of his former wife. The Court will deal with the complaint under Article 8.

Cîrstea v. Romania (no. 10626/11)

The applicant, Florentina-Daniela Cîrstea, is a Romanian national who was born in 1975 and lives in Bucharest. The case concerns her placement in pre-trial detention during the proceedings which

followed a dramatic fire in a neonatal intensive-care ward in which she was responsible for monitoring care.

At the relevant time Ms Cîrstea was a nurse at the Giuleşti Maternity Hospital in Bucharest. On 16 August 2010, while she was the sole nurse on duty in the neonatal intensive-care ward, she left the ward at 6.24 p.m. and was absent for 12 minutes. At 6.30 p.m. a fire broke out, resulting in the death of 5 newborn babies and injuring the six other babies present.

On 17 August 2010 the prosecutor's office at the High Court of Cassation and Justice commenced criminal proceedings in respect of manslaughter and unintentional serious assault. Ms Cîrstea was questioned as a witness and stated that on the evening in question she had smelt something burning and had then gone out to summon help and that the fire had broken out in her absence. On 23 August 2010 the prosecutor's office opened criminal proceedings against Ms Cîrstea on account of her unjustified absence from the intensive-care ward when the fire broke out. On the same date the prosecutor's office ordered her arrest for a period of twenty-four hours. On 24 August 2010 she gave a different account of the events, stating that she had left the ward to go to another room in the hospital and that someone had then raised the alert from the corridor. She had been unable to return to the ward because of the smoke. After she had given her statement the prosecutor's office asked the court to order that she be placed in pre-trial detention. On the same date Ms Cîrstea repeated her statements before the Bucharest Court of First Instance and explained that she had given her first, false, statement, on the suggestion of various colleagues. The court decided that she was to be placed pre-trial detention for a period of twenty-nine days, holding that no other less restrictive measure, such as an obligation to remain in the city, could suffice in the circumstances of the case.

Ms Cîrstea appealed against that judgment. In a final judgment of 30 August 2010, the Bucharest County Court upheld the pre-trial detention order. The pre-trial detention was extended by an interlocutory judgment issued by the Bucharest Court of First Instance on 15 September 2010. That judgment was confirmed on appeal in a final judgment of 20 September 2010.

On 6 December 2010 Ms Cîrstea and five other defendants, including the Giuleşti Hospital, were committed for trial. By a judgment of 9 July 2013 the Bucharest Court of First Instance, upheld by a final judgment by the court of appeal dated 2 April 2015, Ms Cîrstea was sentenced to two and a half years' imprisonment. She served her sentence and was released on 8 February 2016.

Relying on Articles 5 (right to liberty and security) and 6 (right to a fair trial) of the European Convention, the applicant considers that her placement in pre-trial detention was not justified and that the courts had not correctly and thoroughly assessed her applications for release. Relying on Articles 3 (prohibition of inhuman or degrading treatment) and 8 (right to respect for private life), she complained about the publication, in the press, of photographs of her. Relying on Article 13 (right to an effective remedy), she alleges that she had no domestic remedy to defend her rights, infringed by the published press photographs.

[Gürbüz and Bayar v. Turkey \(no. 8860/13\)](#)

The applicants, Ali Gürbüz and Hasan Bayar, are Turkish nationals who were born in 1971 and 1982 respectively. They live in Cologne (Germany) and Berne (Switzerland) respectively. At the relevant time Mr Gürbüz was the owner of the daily newspaper *Ülkede Özgür Gündem* and Mr Bayar was its editor-in-chief.

The case concerns criminal proceedings brought against them for publishing statements by Abdullah Öcalan (head of the Kurdistan Workers' Party (PKK), an illegal armed organisation) and Murat Karayılan (president of Kongra-Gel, a branch of the PKK) in an article which appeared in their newspaper on 3 September 2004.

In September 2007 the Istanbul Assize Court convicted them of the offence of publishing statements by a terrorist organisation, under the Prevention of Terrorism Act (Law no. 3713). The two applicants were ordered to pay a fine, equivalent to 1541.59 euros (EUR) in Mr Gürbüz's case and EUR 770.80 in Mr Bayar's.

In March 2012 the Court of Cassation held that the criminal proceedings against Mr Gürbüz were time-barred. In contrast, it upheld the assize-court judgment in respect of Mr Bayar on the grounds that it had become final as a result of the amount of the fine. Mr Bayar's sentence was suspended.

Relying on Article 10 (freedom of expression), Mr Gürbüz and Mr Bayar complain about the criminal proceedings brought against them.

Thursday 25 July 2019

Just Satisfaction

Vardanyan v. Armenia (no. 8001/07)

The applicant is Yuri Vardanyan, an Armenian national, who was born in 1936 and lives in Yerevan. The case concerns the question of just satisfaction with regard to the deprivation of his house and plot of land and the related civil proceedings.

In its [principal judgment](#) of 27 October 2016 the Court held that there had been a violation of Article 6 § 1 (right to a fair hearing), and a violation of Article 1 of Protocol No. 1 (protection of property) to the Convention.

The Court further held that the question of just satisfaction was not ready for decision and reserved it for examination at a later date.

The Court will deal with this question in its judgment of 25 July 2019.

Jafarov and Others v. Azerbaijan (no. 27309/14)

The case concerns the authorities' repeated refusal to register a non-governmental organisation set up to defend human rights in Azerbaijan.

The applicants are Rasul Agahasan oglu Jafarov, Emin Rafig oglu Huseynov, and Sabuhi Nazir oglu Gafarov, three Azerbaijani nationals who were born in 1984, 1979, and 1974 respectively; and an association they founded in Baku in 2010 called the Human Rights Club (HRC).

In the document founding their association, the applicants elected Mr Jafarov as chairman and decided to apply to the Ministry of Justice for registration as a public association with the status of a legal entity.

Throughout 2011 they made three applications for registration to the Ministry, which were returned each time because they had not complied with various legal formalities. The Ministry's third and last decision, in December 2011, cited the applicants' failure to specify powers of a "legal representative" in their founding document as the reason for refusing registration.

The applicants subsequently lodged proceedings before the domestic courts, arguing that it was not a requirement under the relevant domestic law to appoint a legal representative and that, as they had chosen not to appoint one, they could not be reproached for failing to specify what his or her powers were. They also complained that the Ministry had failed to comply with the registration procedure, which required notification of all alleged errors or omissions after the first review and not in sequence, as had been the case for their applications.

However, the courts, and ultimately the Supreme Court in 2013, upheld the Ministry's actions, finding them to be lawful.

Relying on Article 11 (freedom of assembly and association), the applicants complain about the repeated refusals to register their association. They argue that the real reason for the refusals was to prevent them from carrying out their human rights work, referring to the persecution of NGO activists and human rights defenders in general in Azerbaijan at the time and in particular of Mr Jafarov, who had been arrested in 2014 and convicted on charges of illegal entrepreneurship, tax evasion and abuse of power for allegedly illegally receiving funding for the HRC (see [Rasul Jafarov v. Azerbaijan](#), application no. 69981/14 of 2016). The applicants allege that Mr Huseynov and Mr Gafarov were forced to leave the country, fearing the same persecution.

[Svanidze v. Georgia \(no. 37809/08\)](#)

The applicant, Tina Svanidze, is a Georgian national who was born in 1935 and lives in Tbilisi.

The case concerns her complaint about being convicted of the offence of medical negligence.

At the time of the events the applicant was head of the gynaecological department at Mtskheta Hospital. After the death of a patient, G.M., she was prosecuted for medical negligence. After the trial court had finished examining the evidence, the single judge trying the case was substituted by another judge. The applicant's request to restart the examination of the case was dismissed and the substitute issued a judgment based on the case file material in March 2007. The applicant was convicted of medical negligence and sentenced to three years' imprisonment and fined 15,000 Georgian laris (GEL). The trial court found that she had, without "good reason", failed to provide G.M. with treatment she had urgently required.

G.M. had died in September 2005 after going to the hospital complaining of severe abdominal pain. The applicant had examined her and had had her moved to an intensive care unit. It was later decided that she needed an urgent operation, however, she died before it could take place. The post mortem found acute anaemia owing to a ruptured fallopian tube caused by an ectopic pregnancy.

The trial court found that an ultrasound examination of G.M. had not been organised promptly, and more importantly, despite noting liquid in the patient's abdominal cavity, something which, along with other symptoms, was indicative of a critical condition, the applicant had failed to carry out an urgent medical intervention.

On appeal, she argued that she had not been able to organise the operation because no anaesthesiologist had been available. She also raised a procedural objection about the trial judge being replaced with a substitute judge, with the defence arguing that all the evidence had to be heard again. However, her appeal failed.

In January 2008 the Supreme Court amended the applicant's sentence, while confirming her guilt. In particular, she was given an amnesty and discharged from serving her prison sentence. The Supreme Court also dismissed her argument about the composition of the first-instance court being unlawful and that the substitute judge should have re-heard the evidence.

Relying on Article 6 § 1 (right to a fair trial), the applicant complains that the involvement of a substitute judge in her trial made it unlawful and that the substitute judge had convicted her without participating in the oral examination of the expert and witness evidence. She also complains that her conviction lacked sufficient reasoning as her argument that she was not able to start the operation with an anaesthesiologist was left unanswered.

[Rook v. Germany \(no. 1586/15\)](#)

The applicant, Michael Rook, is a German national who was born in 1964 and lives in Quickborn (Germany). He was a senior manager and, most recently, the managing director of a major consumer electronics retailer in Germany and other European countries.

In February 2011 the Augsburg public prosecutor's office opened a criminal investigation against Mr Rook for taking bribes in commercial activity. In November 2011 he was taken into detention on remand. During the investigation wide-ranging telecommunication surveillance was carried out. A total of around 44,970 telephone calls and about 34,000 other data sets were stored. During searches of Mr Rook's home and of other premises some 14 million electronic files stored on data devices were seized.

The data were analysed by the police; around 1,100 of the electronic files and transcripts of 28 telephone conversations were considered as relevant to the case and were printed and included in the paper files. In November 2011 Mr Rook's lawyer was provided access to the paper investigation file. In November 2011 the lawyer asked to examine the audio files obtained. The public prosecutor's office decided to grant access and informed him that he could examine the data on the premises of the criminal police.

In February 2012 the public prosecutor's office indicted Mr Rook before the Regional Court on 91 counts of taking bribes in commercial activity. In March 2012 Mr Rook's lawyer applied for access to the audio files in the form of a copy on DVD or CD, but the application was rejected. On appeal, the Regional Court ordered that all data sets were to be copied to a computer kept at the prison where Mr Rook was detained, that the defence could listen to the audio files in prison, together with Mr Rook. Shortly afterwards, the computer with the copied audio data was deposited ready for examination in the prison.

In April 2012 Mr Rook's lawyer applied to be provided a copy of the 14 million electronic files. In May 2012 he was provided with a hard disc holding the electronic files [in encrypted form](#). A special program was needed to read the data. His subsequent application that the cost of this special software should be borne by the state was rejected. After lodging a new request to be provided with the data in unencrypted form, in September 2012 he received discs with the electronic files, readable with software available free of charge online.

In December 2012 the Regional Court convicted him on 63 counts of taking bribes in commercial activity and sentenced him to five years and three months' imprisonment.

Mr Rook appealed, arguing in particular that his defence had been harmed because he and his lawyer had not had enough time to review the files of the telecommunication surveillance and the seized electronic data. In February 2014 the Federal Court of Justice quashed the Regional Court's judgment in respect of three counts of bribery in commercial activity, but dismissed Mr Rook's further appeal as ill-founded. In June 2014 the Federal Constitutional Court refused to admit his constitutional complaint.

Relying on Article 6 § 1 and 3 (b) (right to a fair trial and right to adequate time and facilities for the preparation of defence), Mr Rook complains that, during the criminal proceedings against him, he and his counsel were not provided with sufficient and adequate access to audio files, text messages and electronic files which the authorities had seized during the investigation.

[Brzeziński v. Poland \(no. 47542/07\)](#)

The applicant, Mr Zenon Brzeziński, is a Polish national who was born in 1954 and lives in Kozięglówki. The case concerns an allegation that the applicant's freedom of expression has been breached, on account of comments made by the applicant in an election campaign brochure published by him.

In October 2006, during a political campaign for election to municipal and district councils and regional assemblies, Mr Brzeziński, who was standing for the post of municipal councillor, and a certain A.B. issued a brochure in which they called on the public to vote for the members of their electoral group and criticised the way in which the municipality was run. These criticisms mainly concerned the mayor and the members of the municipal council. Mr Brzeziński suggested that the

latter group had concluded a form of agreement, with the sole aim of profiting from the posts that they held.

The mayor and a local councillor who was targeted in the brochure sued Mr Brzeziński and A.B., applying for an injunction to prevent dissemination of the brochure and obliging its authors to rectify the incorrect information published and to offer a public apology. On the morning of 27 October 2006 Mr Brzeziński was summoned by telephone to a hearing scheduled for the same date before the Częstochowa Regional Court. Mr Brzeziński did not attend the hearing. By a decision of the same date, the court discontinued the proceedings against A.B. but prohibited Mr Brzeziński from continuing to distribute his brochure, and ordered him to apologise and to correct the inexact information contained in it. It also ordered him to pay 5,000 Polish zlotys (PLN) to a charitable organisation and PLN 360 to the complainants for costs. The court noted that Mr Brzeziński had implied that fraud had been committed in the allocation of public grants, although, in the court's finding, these facts had not been established.

On 19 April 2007 the court of appeal examined an appeal lodged against the decision of 27 October 2006 and dismissed it. It confirmed that Mr Brzeziński had been lawfully notified of the hearing and held that the evidence available to the regional court corroborated this conclusion.

Relying on Article 10 (freedom of expression), the applicant alleges a breach of his right to freedom of expression.

[Shala v. Switzerland \(no. 63896/12\)](#)

The applicant, Shpend Shala, is a Kosovo¹ national who was born in 1978.

The case concerns criminal proceedings which resulted in Mr Shala's conviction by the Swiss courts for murder in the context of a "blood feud".

In May 1997 the head of the Shala family was executed in Kosovo by a member of the H. family. The following month, the brother of the presumed perpetrator of that murder was killed in Switzerland.

In January 2001 the Laufenburg District Court (Switzerland) delivered judgments concerning six members of Mr Shala's family, including his father, his uncle and his uncle's son.

In November 2010 Mr Shala was convicted of murder and sentenced to 18 years' imprisonment. The district court concluded that Mr Shala and his cousin had fired between 15 and 17 shots into the victim's head while he was attempting to escape. An appeal by Mr Shala to the higher court was dismissed.

Before the higher court, Mr Shala alleged for the first time that there had been a violation of Article 36 of the Vienna Convention on Consular Relations of 24 April 1963 (VCCR). Mr Shala argued, in particular, that his father, his uncle and his uncle's son had not been informed by the district court of their consular rights under the VCCR. According to Mr Shala, this procedural shortcoming had been so serious that it had rendered the statements by these witnesses unusable.

In its decision, the higher court noted that Mr Shala's father had been informed of his right to the assistance of a lawyer and an interpreter and that he had unambiguously waived these rights. It also considered that Mr Shala had been able to ask his father questions during the hearing. It further emphasised that Article 36 of the VCCR was intended to protect foreign prisoners from discriminatory treatment in relation to non-foreign prisoners and not to guarantee defendants' right to remain silent.

¹ All reference to Kosovo, whether to the territory, institutions or population, in this text shall be understood in full compliance with United Nations Security Council Resolution 1244 and without prejudice to the status of Kosovo.

In April 2012 the Federal Supreme Court upheld that judgment. Mr Shala was subsequently transferred to Kosovo, where he is serving his sentence.

Relying on Article 6 § 1 (right to a fair trial), Mr Shala alleges that he was unable to put additional questions to his uncle and the latter's son. He also submits that the statements made by his father at a hearing in July 1998 could not be used, as his father had made his statements without the assistance of a lawyer and an interpreter. Lastly, he complains that the Swiss authorities did not inform his father, his uncle and his uncle's son of their right to consular assistance under Article 36 of the VCCR in the context of the proceedings which had resulted in his conviction.

[Miller v. the United Kingdom \(no. 32001/18\)](#)

The applicant, John George Miller, is a British national who was born in 1951 and lives in Washington, United Kingdom.

The case concerns his complaint that the authorities have failed to carry out an effective investigation into the killing of his son, Corporal Simon Miller, and other members of the Royal Military Police (RMP), while on duty in Iraq.

Corporal Miller was serving in Iraq after the U.S.-led invasion of the country in 2003. Along with five other RMP members, he was killed after a crowd invaded a police station in Majar al-Kabir in Maysan Province, south east Iraq, on 24 June 2003. The RMP group had been working with the local police force as part of a mission to restore and maintain law and order.

Between July 2003 and February 2005 several Army investigations took place, including a Joint Commander's investigation, a Special Investigation Branch investigation and a Board of Inquiry probe. The Special Investigation Branch investigation resulted in a report to the Central Criminal Court in Baghdad in April 2004 and seven suspects were eventually charged, though none were convicted over the deaths.

A UK coroner's inquest was held in March 2006, returning a narrative verdict of unlawful killing. The coroner found in particular that the RMP had had cordial relations with the local police and that there had apparently been no signs of potential trouble at the location. It noted also that the RMP men had not been supplied with iridium satellite telephones, despite earlier orders that all patrols should have that equipment. The coroner found that the men had been killed [by members of an Iraqi crowd at the police station](#).

In 2008 relatives of the families applied to the Strasbourg Court over a refusal by the Metropolitan Police to investigate whether military personnel had failed to protect the soldiers, but the application was rejected for failure to exhaust domestic remedies.

Requests by the applicant to the Minister of State for the Armed Forces for an independent inquiry were rejected in late 2010 and July 2012. An action for judicial review by the mother of one of the other RMP officers was rejected by the High Court, a decision that was upheld on appeal in July 2015. The Court of Appeal held in particular that the State's Article 2 effective investigation obligation had been met by the Board of Inquiry and the coroner's inquest and that issues surrounding the failure to issue the men with iridium telephones had also been dealt with.

In 2013 the applicant's solicitor asked the Attorney General to authorise applications to the High Court for a fresh inquest into the deaths of four of the six men, relying on alleged new evidence about intelligence on possible violence in the area and on the timing and circumstances of the deaths. In June 2017 the Attorney General refused to authorise the request for a new inquiry, a decision he upheld in January 2018.

Relying on Article 2 (right to life), the applicant complains that the investigations into the deaths of the RMP men failed to comply with the procedural duty under that provision to conduct an effective investigation capable of leading to the establishment of the facts.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 23 July 2019

Name	Main application number
Jakovljević and Others v. Bosnia and Herzegovina	51227/16
Tău v. Romania	56280/07
Kadadov and Pereverzev v. Russia	18820/17
Kalyapin v. Russia	6095/09
Volkov and Others v. Russia	3249/12
Sabadash v. Ukraine	28052/13
Shvets v. Ukraine	22208/17

Thursday 25 July 2019

Name	Main application number
Miljević v. Croatia	64596/16
Nogolica v. Croatia	1375/14
Arif and Others v. Greece	41163/17
Dimitras and Greek Helsinki Monitor v. Greece	62643/12
Kavgalakis v. Greece	46715/13
Stergiakas and Others v. Greece	42316/16
Aleksandrija A Dooel v. North Macedonia	26635/12
Teser v. North Macedonia and one other application	50589/09
Niemczyk v. Poland	27773/09
Wysocki v. Poland and six other applications	71888/10
Jiang and Others v. Portugal	6194/13
Varela Martins v. Portugal	15386/16
Parfenov and Barabash v. Russia	16284/18
Khayrullin v. Russia	58272/09
Jarkovský v. Slovakia	4014/12
Tataryn v. Ukraine	25877/08
Telecompaniya Impuls, TOV v. Ukraine	51010/10
Teleradiokompaniya NBM v. Ukraine	35211/09
Apollo Engineering Limited v. the United Kingdom	22061/15

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